

STATE OF NEW YORK

8380--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 13, 2025

Introduced by M. of A. LASHER -- read once and referred to the Committee on Housing -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the multiple dwelling law, in relation to requiring the inspection of certain non-fireproof buildings and compliance with the New York city housing maintenance code and the New York city construction codes

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The multiple dwelling law is amended by adding a new
2 section 140-a to read as follows:

3 § 140-a. Inspection and compliance. 1. a. Every non-fireproof multiple
4 dwelling in a city having a population of one million or more shall be
5 inspected every three years for compliance with the fire safety stand-
6 ards set forth in the New York city housing maintenance code and the New
7 York city construction codes.

8 b. It shall be the duty of every person, firm or corporation acting
9 either as owner, agent, contractor or lessee of such multiple dwellings
10 to conduct such fire safety inspections which shall include but not be
11 limited to electrical wiring, circuits, outlets, switches, cords, and
12 related equipment. Such inspections shall be conducted by an inspector
13 certified by an entity approved by the New York city department of
14 buildings.

15 c. Every person, firm or corporation acting either as owner, agent,
16 contractor or lessee of such multiple dwelling shall submit a fire safe-
17 ty inspection report for each building owned or operated by such person,
18 firm or corporation to the department of buildings or other appropriate
19 local agency every three years.

20 2. Fire safety inspection reports shall include:

21 a. the number and nature of the fire safety hazards found during fire
22 safety inspections; and

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 b. a description of the mitigation or repairs made in response to such
2 fire safety inspection, including the number of repairs or improvements
3 made.

4 3. Failure to submit a report by September first of the third year in
5 the three-year cycle shall result in a fine of one hundred dollars per
6 day until the report has been submitted.

7 4. Those dwellings not in compliance with such fire safety standards
8 shall have six months from such inspection to make repairs or improve-
9 ments necessary to comply with such standards.

10 5. An owner, agent, contractor or lessee may contact the appropriate
11 agency to assist with fire safety inspections should the owner, agent,
12 contractor or lessee believe an area may be too dangerous to inspect
13 without agency assistance.

14 6. Owners of multiple dwellings in a city having a population of one
15 million or more who fail to make repairs or improvements necessary for
16 compliance with the New York city housing maintenance code and the New
17 York city construction codes shall be subject to a fine of one hundred
18 dollars per day until the dwelling complies with such code. Any dwelling
19 that remains non-compliant with such code for a period of six months or
20 more shall cause a lien to be placed upon such dwelling until all
21 repairs or improvements are complete and rents are adjusted based on
22 rent abatements, due to the unsafe conditions originating from the
23 owners' non-compliance.

24 7. The New York city department of buildings shall promulgate rules
25 and regulations as necessary to effectuate these requirements.

26 § 2. This act shall take effect immediately.